DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

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FILED
Superior Court of California
County of Los Angeles

DEC 11 2025

David W. Slayton, Executive Officer/Clerk of Court

By: F. Ochoa, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

LIMITED CIVIL DIVISION

FOX NORMANDIE APARTMENTS, LP,	) Case No.: 22STUD06657
	)
Plaintiff,	) UNLAWFUL DETAINER
	) DECEMBER 12th, 2025
vs.	) 1:30 p.m.

DEFENDANT DERRICK LAMONT DERRICK L. BEVERLY, and DOES 1–10, inclusive,

Defendants.

) BEVERLY'S OMNIBUS POST-[redacted] FOR:) (1) RELIEF FROM FORFEITURE AND) RESTORATION OF POSSESSION) (CCP § 1179);) (2) DETERMINATION AND AWARD OF) RELOCATION BENEFITS AND) RELATED RELIEF (LACC) § 8.52.090 et seq.);) (3) STAY OF ENFORCEMENT OF) [redacted] AND ALL RELATED) WRITS (CCP §§ 918, 1176);) (4) OTHER AND FURTHER RELIEF) AS JUST AND PROPER - 1

) BEVERLY'S OMNIBUS POST-

) [redacted]

) [redacted] FOR:

) (1) RELIEF FROM FORFEITURE AND

) RESTORATION OF POSSESSION

) (CCP § 1179);

) (2) DETERMINATION AND AWARD OF

) RELOCATION BENEFITS AND

) RELATED RELIEF (LACC

) § 8.52.090 et seq.);

) (3) STAY OF ENFORCEMENT OF

) JUDGMENT AND ALL RELATED

) WRITS (CCP §§ 918, 1176);

) (4) OTHER AND FURTHER RELIEF

) AS JUST AND PROPER

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on ___December 11th___, 2025, at ___1:30__p.m., or as soon thereafter as the matter may be heard in Department 91 of the above-entitled Court, located at 111 North Hill Street, Los Angeles, California 90012, Defendant DERRICK LAMONT BEVERLY ("Defendant"), in propria persona, will and hereby does move this Court for an order:

1. Granting RELIEF FROM FORFEITURE and restoring Defendant's tenancy and possessory rights under Code of Civil Procedure § 1179, based on hardship, equity, and Plaintiff's misconduct;

2. Determining and awarding all RELOCATION BENEFITS and related protections due to Defendant under Los Angeles County Code ("LACC") § 8.52.090 et seq. and related tenant-protection provisions, including but not limited to relocation payments, penalties for non-payment, and restoration of Section 8 eligibility;

3. Staying ALL ENFORCEMENT of the unlawful detainer judgment and any related writs or negative credit/tenant reporting under Code of Civil Procedure §§ 918, 1176, and the Court's inherent equitable power; and

4. Granting such other and further relief as the Court deems just and proper in light of Defendant's homelessness, the default judgment entered on November 29, 2022, the January 26, 2023 lockout, and the pattern of statutory violations and due-process defects already presented in

Defendant's Emergency Ex Parte Application and Motion to Vacate Default and Default Judgment under CCP § 473(b)/(d).

This Motion is brought **on the heels of** and in support of Defendant's EMERGENCY EX PARTE APPLICATION (filed December __10th,_, 2025) for:

- Order Vacating Default and Default Judgment;
- Order Shortening Time for Hearing on This Omnibus Post-Judgment Motion; and
- Immediate Stay of Enforcement and Emergency Relief.

This Motion is based on this Notice, the attached Memorandum of Points and Authorities, the concurrently filed (or previously filed) Declaration of DERRICK LAMONT BEVERLY, the Emergency Ex Parte Application and supporting papers, all pleadings and records on file in this action, and such further oral and documentary evidence as may be presented at the hearing.

DATED: December 10, 2025 Respectfully submitted,

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

This case is not just about rent; it is about **forfeiture, homelessness, and statutory protections that were never honored**.

Default judgment was entered against Defendant on or about November 29, 2022 in Case No. 22STUD06657. Defendant never had a fair opportunity to be heard before judgment, and on January 26, 2023, Defendant was forcibly locked out of Unit 101 at 849 S. Normandie Avenue, Los Angeles, California 90005, following a January 4, 2023 "Notice to Vacate," despite Defendant's completion of a housing program, Section 8 voucher eligibility, and statutory tenant protections.

Defendant has now moved ex parte to vacate the default and default judgment, to stay all enforcement, and to correct a sequence of procedural and substantive violations that culminated in homelessness and the loss of critical housing benefits.

Assuming the Court grants (or is inclined to grant) relief from default, **the next step** is to address the **substantive post-judgment remedies** that flow from the same facts and statutory scheme:

• Relief from forfeiture and restoration of possessory rights under

Code of Civil Procedure § 1179;

- Determination and award of relocation benefits and penalties under LACC § 8.52.090–.130 and related California law;
- A stay of all enforcement activity and negative reporting to prevent ongoing, irreparable harm while these issues are resolved.

Equity favors relief where a tenant has been displaced into homelessness based on a default judgment entered without proper notice, where local tenant protection ordinances apply, and where relocation assistance was never paid.

II. RELEVANT FACTS

1. **The Tenancy and Housing Program**

Defendant was a long-term tenant at 849 S. Normandie Avenue, Unit 101, under a housing program administered by A Community of Friends and Fox Normandie Apartments, LP. Defendant successfully completed a two-year program, and Section 8 voucher eligibility was awarded after the second lease term ended in 2019. Defendant remained in possession as a program tenant and voucher recipient.

(See Exhibit 1 – Lease and Program Documents.)

2. **The Unlawful Detainer Action and Default Judgment**

Plaintiff filed this unlawful detainer action, Fox Normandie Apartments, LP v. Derrick L. Beverly, Case No. 22STUD06657, alleging non-curable breach including

accusations of nuisance, elevator damage, and defacing the premises. Defendant disputes these allegations as false and defamatory.

A default and default judgment were entered on or about November 29, 2022, without Defendant's actual knowledge or meaningful opportunity to appear and defend.

(See Exhibit 2 – UD Complaint and Judgment Documents.)

3. **Notice to Vacate and January 26, 2023 Lockout**

Plaintiff issued a "Notice to Vacate" dated January 4, 2023. On January 26, 2023, sheriff's deputies and/or Plaintiff's agents conducted a lockout at Unit 101. The lockout was recorded via Facebook Live and contemporaneous documentation.

Defendant was rendered **homeless** as a direct result of the lockout, losing the stability of the unit, the Section 8 housing benefit, and all associated protections.

(See Exhibit 3 – Notice to Vacate and Lockout Screenshots/Video Stills.)

4. **Relocation Assistance Was Never Paid**

Under LACC § 8.52.090 et seq., and related tenant-protection measures, tenants subject to no-fault or Ellis Act-type displacement are entitled to **relocation assistance** and timely payment within statutory deadlines. Defendant never received the relocation payments required by law, nor any meaningful

information about the amount, timing, or process for such benefits.

(See Exhibit 4 – Damages Affidavit and Relocation Demand.)

5. **Continuing Harm and Current Posture**

Defendant is currently unhoused, incurring daily survival costs, emotional distress, health impacts, and long-term economic harm. The judgment remains a stain on Defendant's credit and tenant history, impeding access to new housing.

In tandem with the Emergency Ex Parte Application to vacate the default and default judgment, Defendant now seeks post-judgment **equitable and statutory relief** to unwind the forfeiture, restore rights, and require compliance with relocation laws.

III. LEGAL STANDARDS

A. Relief from Forfeiture and Restoration of Tenancy – CCP § 1179

Code of Civil Procedure § 1179 empowers the Court, **at any time before restoration of the premises to the landlord**, to relieve a tenant from a forfeiture and restore them to their former estate on such conditions as may be just, in cases of hardship and equity. The statute is broadly remedial and invites the Court to balance:

- The severity of the forfeiture and resulting hardship to the tenant;
- The conduct of the landlord, including any misconduct or overreach; and

- The tenant's willingness to satisfy fair conditions such as payment schedules or compliance assurances.

Where the result of a forfeiture is homelessness and extreme hardship, courts have recognized that § 1179 should be applied liberally.

B. Local Tenant Protections and Relocation Assistance – LACC § 8.52.090 et seq.

LACC § 8.52.090 et seq. and related provisions require housing providers to pay relocation benefits to qualified tenants when they are permanently displaced by no-fault causes, Ellis Act withdrawals, or similar programmatic terminations. Remedies include:

- Payment of defined relocation amounts, scaled by tenancy, vulnerability, and other factors;
- Deadlines for payment, with penalties for non-payment or delay;
- Enforcement mechanisms including private complaints, administrative remedies, and civil enforcement.

Failure to pay relocation assistance as required can constitute an independent violation of tenant-protection laws and support additional civil relief.

C. Stay of Enforcement – CCP §§ 918, 1176 and Equitable Powers

Code of Civil Procedure § 918 authorizes the Court to stay enforcement of a judgment or order for a limited time, and § 1176 allows a stay of execution in unlawful detainer actions in specified circumstances. Separately, the Court

retains inherent equitable power to issue orders preventing irreparable harm where ongoing enforcement would undermine the Court's ability to afford full relief.

Where Defendant has moved to vacate a default judgment and seeks post-judgment equitable remedies, a stay of further enforcement is appropriate to preserve the status quo and prevent further damage to housing rights and credit.

IV. ARGUMENT

A. The Court Should Grant Relief From Forfeiture and Restore Defendant's Tenancy Under CCP § 1179

The combination of facts here — default judgment without meaningful notice, forcible lockout, resulting homelessness, loss of a Section 8 housing benefit, and ongoing harm — present exactly the kind of **extraordinary hardship** § 1179 is designed to address.

1. Hardship is extreme and ongoing.

Defendant has been rendered homeless, sustaining daily survival costs, loss of community stability, and compounded emotional distress. The economic and non-economic harm is not hypothetical; it has played out over nearly three years since the January 26, 2023 lockout.

2. Plaintiff's conduct and statutory non-compliance weigh against forfeiture.

Plaintiff proceeded via default, asserted severe allegations Defendant denies, and failed to ensure that Defendant received required relocation assistance under LACC § 8.52.090 et seq. Even if the Court had concerns about lease compliance, the **total forfeiture** of a long-term tenancy under these conditions is disproportionate.

3. Equitable conditions can be imposed.

If the Court deems it necessary, relief from forfeiture can be conditioned on reasonable terms (e.g., compliance assurances, payment schedules, or mutual non-harassment provisions). But outright forfeiture in the face of extreme hardship and statutory violations is inequitable.

Accordingly, the Court should grant relief from forfeiture and restore Defendant's tenancy and/or equivalent housing protections to the maximum extent permitted by law.

B. The Court Should Determine and Award All Relocation Benefits Due Under LACC § 8.52.090 et seq.

Even if the Court concludes that physical restoration of the exact unit is no longer practicable, the Court should still determine and award the relocation benefits Defendant was legally entitled to receive at the time of displacement.

1. Defendant was a protected tenant displaced from a covered property.

The property at 849 S. Normandie Avenue, Los Angeles, California 90005 is

subject to local tenant-protection provisions. Defendant was a long-term, program-based tenant and Section 8 voucher recipient, squarely within the class of persons those ordinances are designed to protect.

2. No relocation assistance was paid.

Despite the January 4, 2023 Notice to Vacate and January 26, 2023 lockout, Plaintiff did not tender relocation payments within statutory timeframes, nor did Plaintiff meaningfully engage with Defendant regarding relocation amounts, deadlines, or process.

3. The Court can and should calculate and order payment now.

Defendant has submitted (or will submit) a Damages and Relocation Affidavit detailing base economic damages, non-economic damages, and the relocation amounts requested, taking into account local schedules, length of tenancy, and vulnerability factors.

(See Exhibit 4 – Damages & Relocation Affidavit; Exhibit 5 – Timeline of Events.)

The Court should:

- Identify the correct relocation tier and dollar amount;
- Order immediate payment of relocation assistance;
- Consider statutory penalties or interest for delayed payment; and
- Clarify that Defendant's Section 8 eligibility and tenant status are not to be negatively impacted by Plaintiff's non-compliance.

C. A Stay of Enforcement of Judgment and All Related Writs Is Necessary to Prevent Further Irreparable Harm

Even while the Court evaluates the Motion to Vacate and this Omnibus Motion, the judgment continues to cause harm:

- Tenant-screening services may be reporting the unlawful detainer;
- Credit scores and rental applications may be adversely impacted;
- Housing agencies may be relying on the judgment to deny or delay assistance.

Under CCP §§ 918, 1176, and the Court's inherent equitable power, a stay of enforcement and reporting is appropriate to avoid further damage. This includes staying:

- Any further writ-based enforcement;
- Negative reporting of the judgment to tenant-screening services and consumer reporting agencies;
- Any use of the judgment as a basis to deny Defendant access to housing programs, including Section 8 or other subsidies.

D. The Court Should Grant Such Other and Further Relief as Just and Proper

In light of the record now before the Court — including the Emergency Ex Parte Application, Motion to Vacate Default and Default Judgment, declarations, exhibits, and this Omnibus Motion — the Court should exercise its equitable authority broadly to correct the harm.

Additional relief may include, as appropriate:

- Orders directing Plaintiff to correct any inaccurate reports or entries stemming from the judgment;
- Orders facilitating Defendant's application for emergency or replacement housing;
- Scheduling orders for limited discovery related to relocation and damages;
- Any other remedial measures necessary to restore Defendant as nearly as possible to the position he would have occupied absent the wrongful judgment and lockout.

V. CONCLUSION

For the foregoing reasons, Defendant respectfully requests that the Court:

1. GRANT Defendant's request for RELIEF FROM FORFEITURE under CCP § 1179 and restore Defendant's tenancy and/or equivalent housing protections;

2. DETERMINE and AWARD all relocation benefits due under LACC § 8.52.090 et seq., including any applicable penalties or interest for delayed payment;

3. STAY all enforcement of the unlawful detainer judgment and any related writs, and bar any negative reporting or use of the judgment pending final resolution of these motions;

4. ISSUE such additional and further orders as the Court deems just and

proper to remedy the harm described in Defendant's Emergency Ex Parte Application, Motion to Vacate Default and Default Judgment, and the supporting declarations and exhibits.

DATED: December 10, 2025 Respectfully submitted,

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona